

## DISSENTING OPINION OF M. ANZILOTTI.

[*Translation.*]

1.—There are two points in the judgment in regard to which I am unable to agree with the opinion of the Court: these are the rejection of submission I *b* of the Application (the Neerhaeren Lock) and the rejection of submission 1° of the Counter-claim (the Borgharen barrage). In my opinion, the Court should have accepted both these submissions.

As my dissent is based on an interpretation of the Treaty of May 12th, 1863, differing from that adopted by the Court, it is fitting that I should state the reasons for it in a few words.

Before giving my individual opinion on the two points in question, I must however make a general observation.

The operative clause of the judgment merely rejects the submissions of the principal claim and of the Counter-claim. In my opinion, in a suit the main object of which was to obtain the interpretation of a treaty with reference to certain concrete facts, and in which both the Applicant and the Respondent presented submissions indicating, in regard to each point, the interpretation which they respectively wished to see adopted by the Court, the latter should not have confined itself to a mere rejection of the submissions of the Applicant: it should also have expressed its opinion on the submissions of the Respondent; and, in any case, it should have declared what it considered to be the correct interpretation of the Treaty.

It is from the standpoint of this conception of the functions of the Court in the present suit that the following observations have been drawn up.

2.—The question whether the functioning of the Neerhaeren Lock, the effect of which is to discharge into the Zuid-Willemsvaart water diverted from the Meuse elsewhere than at the feeder prescribed by Article I, is or is not contrary to the Treaty, depends, mainly, on the scope of the obligation which the two Parties contracted when they laid down in this Article that the new intake on the Meuse "shall constitute the feeder for all canals situated below that town", etc. Is this an obligation merely to refrain from constructing other intakes on the Meuse constituting feeders for the aforesaid canals? or is it an obligation to refrain from feeding these canals with water diverted from the Meuse elsewhere than at the treaty feeder, no matter by what method such feeding may be effected (by a conduit, by lockage, by pumping, etc.)?

If the text is taken literally, it seems only to refer to “feeders” of the same sort as the one which the Treaty ordered to be constructed.

But it is always dangerous to be guided by the literal sense of the words before one is clear as to the object and intent of the Treaty; for it is only in this Treaty, and with reference to this Treaty, that these words—which have no value except in so far as they express the intention of the Parties—assume their true significance.

The Treaty of May 12th, 1863, is based, in my opinion, on the fundamental principle that a certain quantity of water, and no more, will be taken from the Meuse to supply the needs of the canals situated below Maestricht and for the irrigation works in the Campine and the Netherlands. The quantity of water to be withdrawn from the Meuse is fixed with reference to the level of the river (Art. IV); and this provision is closely connected with the other object of the Treaty, which is to institute a régime on the Meuse, by means of a programme of works that would maintain and improve the navigability of that river in spite of the relatively large quantity of water which it was proposed to withdraw from it (Art. IX).

If that is really the system of the Treaty—and I do not see how it can be questioned—it follows that the essential purpose of Article I is not to exclude other feeders. Its object is rather to exclude any feeding of the canals in question with water withdrawn from the Meuse elsewhere than at the treaty feeder; for it is only at that feeder that the water can be measured, and it is only if its volume remains within the limits laid down, that the Treaty is being regularly executed. That is the reason, and that is the significance, of the single feeder which is sanctioned by Article I.

It follows that the obligation which the Parties assumed when they laid down that the new intake would “constitute the feeder for all canals....” is not merely an obligation to refrain from constructing other feeders, but is an obligation to refrain from supplying these canals with water taken from the Meuse elsewhere than at the treaty feeder, no matter by what method it is taken or by what method it is discharged into the canals in question. Moreover, it cannot be disputed that engineers regard lockwater as an important, in some cases the most important, factor in the feeding of canals.

Founding myself on this interpretation of the Treaty, I am led to the conclusion that the functioning of the Neerhaeren Lock, the effect of which is to discharge into the Zuid-Willemsvaart a certain quantity of Meuse water diverted at Monsin in excess of the quantity laid down in Article IV, is contrary to this Treaty.

It matters little that this surplus water discharged into the Zuid-Willemsvaart has not increased the velocity of the current in this canal beyond the maximum limit laid down in Article III. That maximum constitutes a limit for the volume of water which may lawfully be withdrawn at the treaty feeder, in virtue of Article V, paragraph 2; the fact that it is not exceeded could not have the effect of legalizing a withdrawal of water from the Meuse which is, in itself, contrary to the Treaty.

It is true that this Treaty provides (Art. II) for the construction of a lock, the result of which would be to discharge into the Zuid-Willemsvaart Meuse water conveyed from Liège by the Liège-Maastricht Canal. It must however be pointed out that the construction of that lock was a necessary consequence of the works prescribed by the Treaty (Arts. II and III) in order to enable the Zuid-Willemsvaart to discharge the water received through the new intake. The only argument which can be drawn from it, in support of the opposite view, is, therefore, that the water discharged through this lock is not included in the quantity laid down in Article IV. But it is admitted—and both Parties are agreed on this point—that the total average quantity of lock-water discharged by this lock is very small, and is less than the margin of error allowed in measuring the volume of water prescribed in Article IV. It was therefore quite natural that the authors of the Treaty should not have taken this water into account.

But it would be going beyond the reasonable intentions of the Parties to seek to infer from this fact that, because lock 19, in affording passage to barges, discharges into the Zuid-Willemsvaart a volume of water which supplements that taken from the Meuse by the treaty feeder, it is lawful to construct other locks, performing the same function and producing the same effects. This would subvert the whole system of the Treaty.

3.—Submission I *b* of the Application must however be considered also from another point of view.

Before Belgium had constructed the Neerhaeren Lock, the Netherlands had constructed and brought into use the Bosscheveld Lock, which also had the effect of conveying into the Zuid-Willemsvaart a certain quantity of water drawn from the Meuse elsewhere than at the treaty feeder, and, consequently, in excess of the volume laid down in Article IV of the Treaty. The Netherlands allege that they were entitled to construct the Bosscheveld Lock because in virtue of Article V, paragraph 2, they were authorized to withdraw water from the Meuse elsewhere than at the treaty feeder, and to discharge it into the Zuid-Willemsvaart, subject only to the condition

that the speed of the current of that canal was not caused to exceed the maximum limit laid down in Article III. Belgium disputes that interpretation, and maintains that, subject to the possibility of increasing the volume of water that may be diverted through the treaty feeder, the rights and obligations of the two States were identical.

Having regard to the foregoing, it is clear that the first thing to do is to ascertain what is the attitude of the respondent Party in regard to the claim concerning the Neerhaeren Lock.

The Belgian Government, in opposing submission I *b* of the Application—in addition to its general request that the submission of the applicant Party shall be declared to be ill-founded—asks the Court to adjudge and declare that “the feeding of the Zuid-Willemsvaart and the canal joining the Meuse and the Scheldt and its branches is not rendered incompatible with the Treaty mentioned above by the fact that lockage water arising from the working of the Neerhaeren Lock—operated *bona fide* for the passing of boats—is added to the water from the Meuse coming from the intake at Maestricht, as the Neerhaeren Lock cannot be treated less favourably than the Bosscheveld Lock” (submission 2° of the Counter-Memorial).

Disregarding for the moment the last phrase “which cannot be treated less favourably”, etc., it is clear that what Belgium is asking the Court to do is to give an interpretation of the Treaty on the point of law raised by submission I *b* of the Application. It is therefore evident that both Parties were agreed in asking the Court for this interpretation.

Is this view controverted by the last sentence of the submission in which the Belgian Government brings the Bosscheveld Lock into consideration? My answer is definitely in the negative; I see nothing more in these words than an allusion to the Belgian contention of the equality of the two States in regard to the Treaty of 1863, and consequently an argument in support of the interpretation which the Court is asked to give. For it is manifest that the Belgian Government could scarcely suppose that the Court, having reached the conclusion that the Treaty prohibits the feeding of canals situated below Maestricht by lock-water taken from the Meuse elsewhere than at the treaty feeder, would subsequently change its opinion and alter its interpretation in consequence of the existence of the Bosscheveld Lock. For either the Court would consider that this lock is justified by Article V, paragraph 2, as the Netherlands contend, so that its existence could in no way affect the Neerhaeren Lock; or the Court would consider that Article V, paragraph 2, does not possess the meaning attributed to it by the Netherlands, and then it could only conclude that the Bosscheveld Lock is also contrary to the Treaty.

No doubt the Belgian Government might have asked the Court, in case the latter should not accept its interpretation of the Treaty, to declare that the Bosscheveld Lock is itself contrary to the said Treaty; it would only have needed to present an alternative submission to submission 2° of the Counter-Memorial. But the Belgian Government did not present any such submission; that is its own affair and the Court did not need to concern itself with the matter. It is none the less true that the Belgian Government asked for the interpretation of the Treaty with reference to the Neerhaeren Lock just in the same way as this had been requested by the Netherlands Government: this circumstance suffices in my opinion to oblige the Court to give a decision on submission I *b* of the Application and on submission 2° of the Counter-Memorial, without concerning itself in any way with the existence of the Bosscheveld Lock; I have already mentioned the grounds on which the Court should have admitted submission I *b* of the Application and rejected submission 2° of the Counter-Memorial.

But there is another aspect of the question. Submission I *b* of the Application is not the only one which relates to the Neerhaeren Lock. In submission II *b*, the Netherlands asked the Court to condemn (*condamner*) Belgium "to discontinue any feeding held to be contrary to the said Treaty and to refrain from any further such feeding"; there can be no doubt that this submission has primarily in view the functioning of the Neerhaeren Lock.

In my opinion the word *condemn* ("*condamner*") is not entirely appropriate in international proceedings; in any case, it is employed in a sense which is only remotely connected with that of *condemnation* in national law. What the Netherlands ask in submission II *b* is, in fact, that the Court should declare that Belgium is bound to carry out the Treaty and to discontinue effecting certain supplies of water. While submission I *b* seeks for an interpretation of the Treaty, submission II *b* seeks for its execution.

In its Rejoinder, the Belgian Government presented certain alternative submissions, the second of which is worded as follows: "To find that, by constructing certain works contrary to the terms of the Treaty, the Applicant has forfeited the right to invoke the Treaty against the Respondent".

This was an alternative submission "in case the Court should be unable on certain points to find in accordance with the submissions of the Respondent"; in fact, it is a submission which only arises, so far as concerns the Neerhaeren Lock, in case the Court, in deciding on submission I *b* of the Application and on submission 2° of the Counter-Memorial, should

reject the interpretation maintained by the Belgian Government. In my view, the Court should therefore have given a decision on the alternative submission.

The admissibility of this submission depends on two conditions, namely, whether the legal rule on which it founds itself is applicable in relations between States, and whether the Netherlands, by constructing the Bosscheveld Lock, were failing to execute the obligation imposed on them by the Treaty.

As regards the first point, I am convinced that the principle underlying this submission (*inadimplenti non est adimplendum*) is so just, so equitable, so universally recognized, that it must be applied in international relations also. In any case, it is one of these "general principles of law recognized by civilized nations" which the Court applies in virtue of Article 38 of its Statute.

As regards the second point, I am also of opinion that the Belgian Government's objection is well founded. If it is true that the Netherlands, in virtue of Article V, paragraph 2, have the right, which Belgium does not possess, to "increase the volume of water taken from the Meuse", it is none the less true that this water has to be withdrawn through the treaty feeder: the text of this paragraph is perfectly clear and allows of no doubt on that point. It follows that the obligation imposed by Article I, the scope of which has been explained above, applies to the Netherlands as well as to Belgium: the feeding of the Zuid-Willemsvaart by the Bosscheveld Lock with water diverted from the Meuse elsewhere than at the treaty feeder is therefore contrary to the Treaty.

To sum up my point of view, I consider that the Court should have proceeded as follows:

in passing upon submissions I *b* of the Application and 2° of the Counter-Memorial, the Court should have allowed the former and rejected the latter, and it should have adjudged and declared that the feeding of the canals referred to in Article I of the Treaty, through the Neerhaeren Lock, with water taken from the Meuse elsewhere than at the treaty feeder, is contrary to the Treaty;

in passing upon submission II *b* of the Application and on the alternative submission of the Rejoinder, the Court should have allowed the latter and rejected the former, in so far as either of the said submissions relates to the lock at Neerhaeren; it should have adjudged and declared that, as a result of the construction of the Bosscheveld Lock, the Netherlands have placed themselves in a position which precludes them from invoking the Treaty to obtain a cessation of the feeding of the aforesaid canals through the Neerhaeren Lock.

4.—The interpretation of the Treaty of 1863 which leads me to conclude that the Neerhaeren and Bosscheveld Locks are contrary to the Treaty has led me to a like conclusion in regard to the Borgharen barrage.

I have already said that the fundamental idea of the Treaty was to reconcile the satisfying of certain interests relating to the canals and irrigation works referred to in Article I with the interests of navigation on the Meuse; I have also said that this reconciliation was effected, on the one hand, by fixing the quantity of water which might be taken from the Meuse, and, on the other hand, by laying down a programme of works calculated to conserve the navigability of the river, in spite of the reduction in its volume of water.

It was precisely with this object that the quantity of water which might lawfully be taken from the Meuse was fixed in Article IV in relation to the depth of water in the river. The variations prescribed in that Article, according as the surface of the Meuse is above the low level of that river, or at the low level, or below it, and also according to the different months of the year, are consequently an essential part of the settlement agreed upon between the two States. A structure which abolishes these variations as is done by the barrage at Borgharen is consequently, by reason of that very fact, contrary to the Treaty.

Though it is true that the Netherlands are entitled to increase the quantity of water to be withdrawn by the treaty feeder in virtue of Article V, paragraph 2, and Article XI, it is equally true that this right is itself conditioned by the natural flow of the river: there is nothing in the Treaty which authorizes the Netherlands to modify that flow for their own benefit. Article XI provides for works "necessitating an increase in the volume of water to be withdrawn from the Meuse", not for works having as their purpose and effect an increase in the volume of water discharged through the treaty feeder. The works provided for in Article XI are, therefore, works relating to navigation canals or to irrigation works beyond Loozen. It has not been alleged, and it could not be contended, that the Netherlands made the Borgharen barrage with the object of increasing the quantity of water to be withdrawn through the treaty feeder; the fact is that the volume of water has been increased, so that it stands at the maximum limit throughout the whole year, and the Meuse has been proportionately depleted, owing to the construction of this barrage by the Netherlands with a totally different object.

As, in my opinion, the Borgharen barrage constitutes an infraction, in particular, of Article IV of the Treaty, the purpose of which was to establish a certain proportion between the volume of water allotted to the canals referred to in Article I

and the volume of water which was to be left in the Meuse, I am unable to attribute importance to the argument that Belgium has suffered no injury by the construction of the barrage, but that she has rather benefited by it. The existence of an injury would be relevant if Belgium had made a claim for damages, but she has simply asked for the interpretation of the Treaty. Moreover, it is quite possible that the interests of navigation on the Meuse have altered considerably since 1863, and that the decrease in the quantity of water left in the river may now be of far less importance than it would have been in the past; but it is none the less true that the Treaty says what it does say, and that one of the Parties to it is not entitled, without the consent of the other Party, to render certain of its provisions incapable of execution, in particular a provision so fundamental as Article IV.

For these reasons, I consider that the Court should have accepted submission 1° of the Counter-claim, should have rejected submission III (1) of the Reply, and should have adjudged and declared that the fact of making it impossible, by the construction of the Borgharen barrage, for the quantity of Meuse water discharged through the treaty feeder to vary according to the level of the Meuse, as provided in Article IV of the Treaty, and of constantly maintaining that quantity at its maximum amount, is an infraction of the Treaty.

(Signed) D. ANZILOTTI.